



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd, AICP
Subject: UDC-25-77 | Earthcore Facility
Date: May 12, 2025

Background:

The item for consideration is an *Outside User Agreement*. This is approved by Resolution.

The proposed Governing Body review schedule is as follows:

- Introduction 5/12/2025
- Public Services Committee 5/19/2025
- Consideration 5/27/2025

Attachments:

1. Resolution
2. Staff Report

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION APPROVING SANITARY SEWER AND WATER SERVICES, BY OUTSIDE USER AGREEMENT, FOR ICEROCK WYOMING, LLC, FOR LAND LOCATED EAST OF CLEAR CREEK PARKWAY SOUTH OF HIGH PLAINS ROAD."

WHEREAS, Icerock Wyoming, LLC, is the owner of real property in Laramie County, Wyoming, more specifically described as Lot 3, Block 1, Swan Ranch Rail Park, 3rd Filing;

WHEREAS, Icerock Wyoming, LLC ("the Applicant"), submitted an application to the City of Cheyenne and the Board of Public Utilities ("BOPU") for sanitary sewer services and water services outside of the corporate limits of the City of Cheyenne for the above-referenced property;

WHEREAS, pursuant to Resolution No. 3577, BOPU was instructed to present to the Governing Body for its review any application for the provision of water and/or sanitary sewer services to any individual or entity outside the corporate limits of the City of Cheyenne;

WHEREAS, BOPU has reviewed the application submitted by the Applicant, and BOPU and the Applicant will approve and execute applicable Outside User Agreement(s) upon approval by the Governing Body pursuant to Resolution No. 3577; and

WHEREAS, the Governing Body has reviewed the application for sanitary sewer services and water services submitted by the Applicant and has determined that approval is in the best interest of the City of Cheyenne.

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the application submitted by the Applicant to BOPU for sanitary sewer services and water services outside of the corporate limits of the City of Cheyenne for the property more specifically described above, is hereby approved; and

BE IT FURTHER RESOLVED, that BOPU and the Applicant are authorized to approve and execute Outside User Agreement(s), subject to the condition(s) imposed by the Governing Body.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2025.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kylie Soden, City Clerk



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(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE GOVERNING BODY

MAY 12, 2025

STAFF REPORT

FILE: PUDC-25-77: Earthcore - Outside User Agreement

REQUEST: An outside user agreement for the provision of sewer and water to a property outside City limits.

LOCATION: South of High Plains Road and east of Clear Creek Parkway.

APPLICANT: Icerock Wyoming LLC

AGENT: Jake Wilson, AVI, PC

OWNERS: Icerock Wyoming LLC

PREPARED BY: Seth Lloyd, AICP, Senior Planner



APPLICABLE CITY CODE SECTION(S) AND PLANS:

- PlanCheyenne
- Resolution 3577

BACKGROUND:

The applicant is requesting connection to BOPU sanitary sewer services and water services for property outside City limits. There is currently existing water and sewer in the area and multiple other outside user agreements. City water and sanitary sewer is currently adjacent to the property along the northwest side.

The standard Outside User Agreement contract includes language where the applicant consents to annexation at the City's request, with no specific date to complete the annexation.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Mixed-use Employment	County Planned Unit Development (PUD)	Vacant
North	Mixed-use Employment	County PUD	Employment (Office)
South	Mixed-use Employment	County PUD	Industrial
East	Public Quasi-public	County P Public	Industrial
West	Industrial	County PUD	Industrial, Vacant

The property is currently zoned a PUD Planned Unit Development in the County.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

The request for an outside user agreement has no formal review criteria; however, the following elements should be considered when reviewing outside user agreements:

- BOPU capacity
- Needed infrastructure improvements
- Fiscal cost/benefit to the City and the BOPU
- Population served
- Considerations on the effect on future annexation(s), including proximity to current and future City services
- Conformance with the Comprehensive Plan

The requested outside user agreement has minimal impact on BOPU's system capacity. The proposed use of the property is for industrial use. Water and sanitary sewer is available within Clear Creek Parkway.

Property tax would increase, but the City would not have any income from the property tax in the area at this time. The proposed use is not residential and would not change distribution of funds based on population. The BOPU may charge a higher rate for outside users.

City police, fire, and sanitation services are within this area as High Plains Road and large acreages less than 400 feet away to the north and northeast are within City Limits. The surrounding properties are under outside user agreements and could be annexed due to contiguity to the north. Future annexation may result in sites that are in City limits but substandard compared to typical City requirements, including fire code requirements.

The Comprehensive Plan designates this area as Mixed-use Employment – and the proposed use in this location is consistent with that anticipated development pattern.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- Plan Cheyenne

Conformance with PlanCheyenne is discussed above.

STAFF REVIEW:

Through the review process, no comments were received.

CONCLUSION:

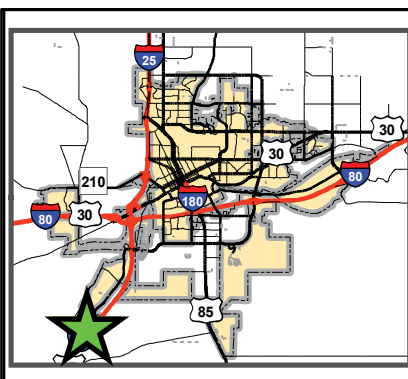
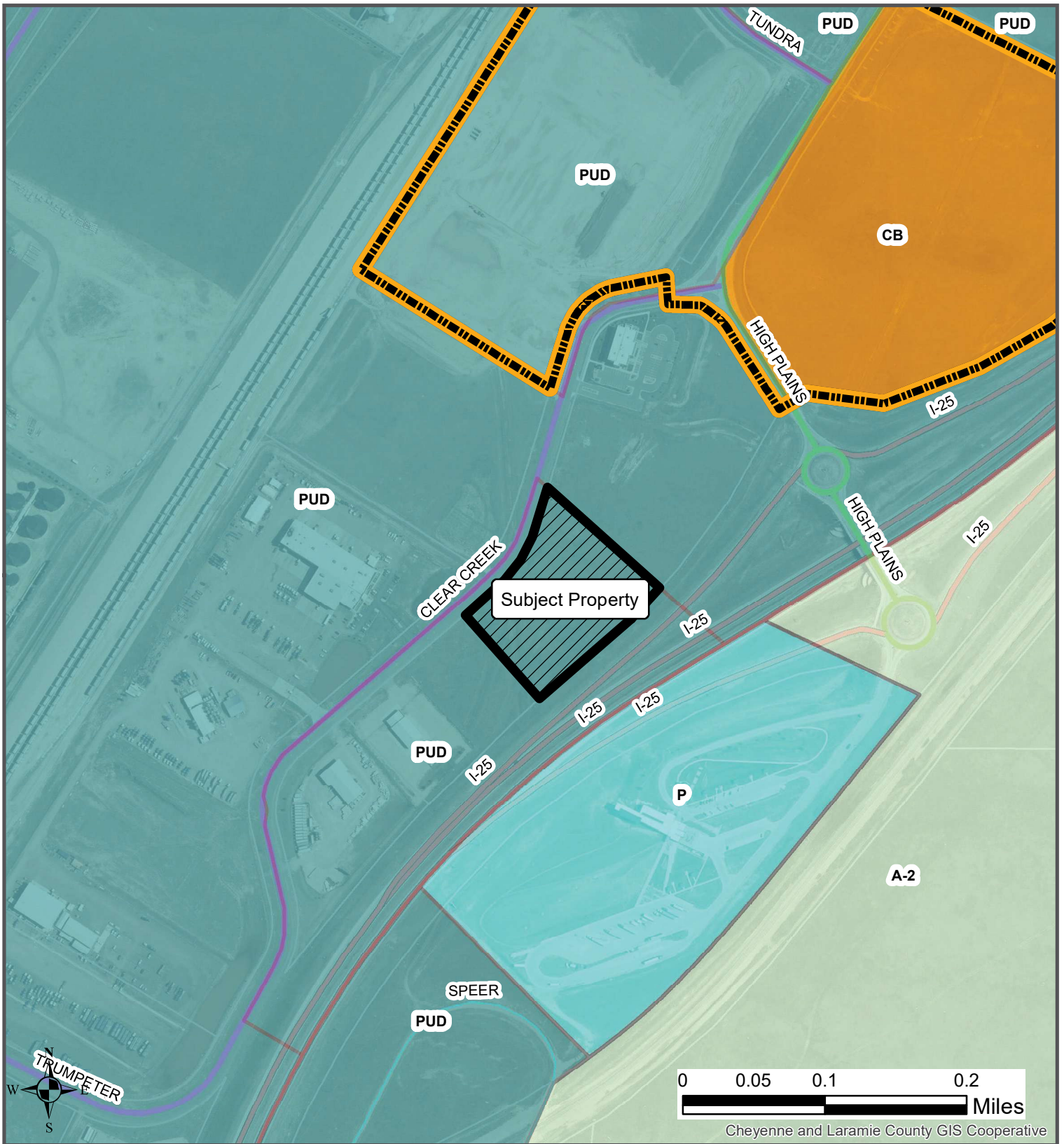
Staff is satisfied that the application is acceptable based on the considerations specific to this request and therefore recommends approval of the outside user agreement.

STAFF RECOMMENDATION:

Staff recommends approval of the proposed outside user agreement.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Application
4. Applicant-submitted proposed site plan

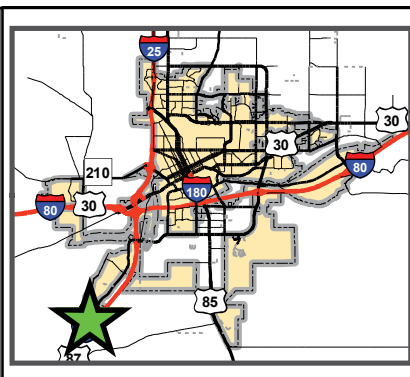
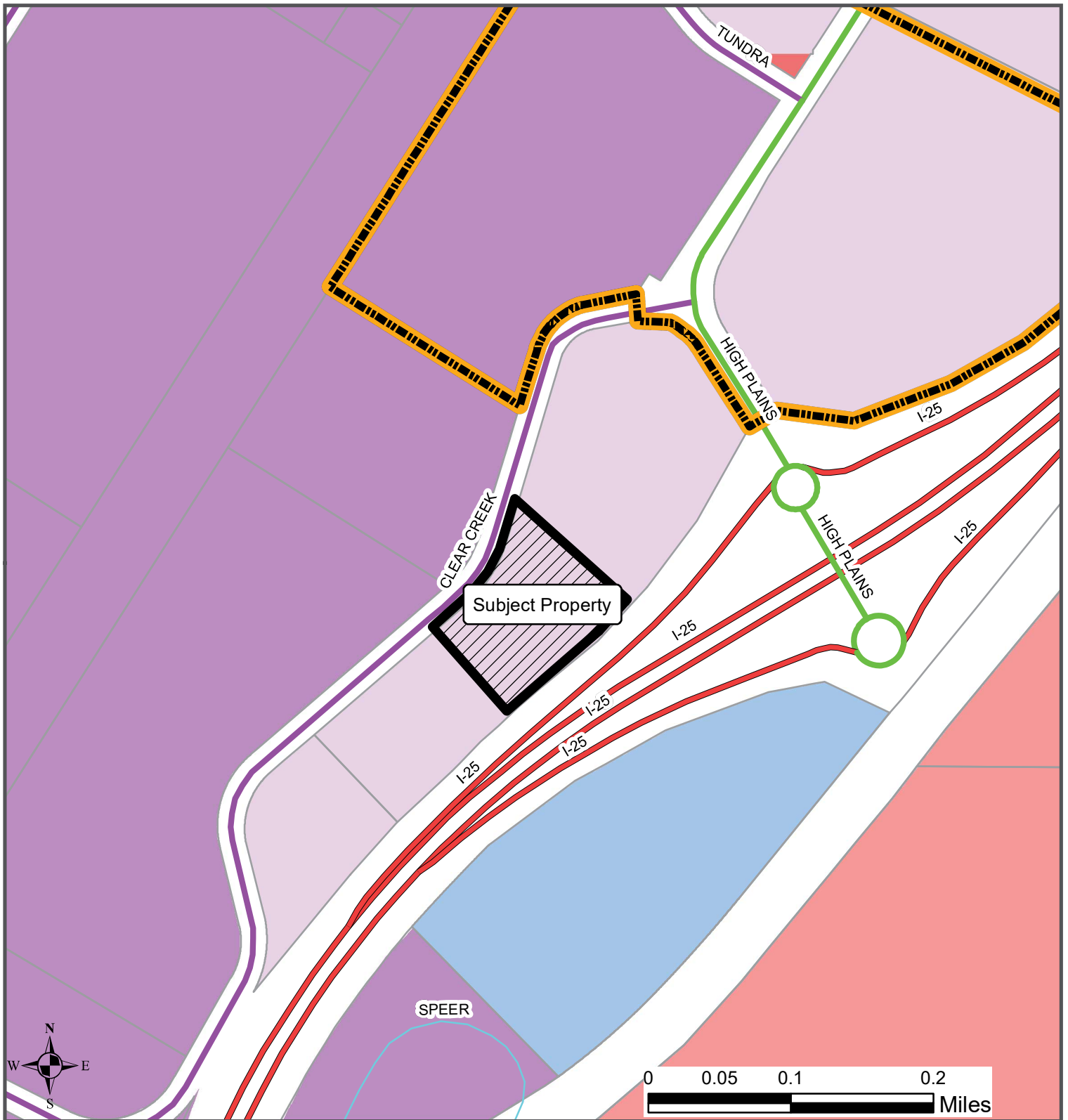


Attachment 1: Zoning Map PUDC-25-77

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

	Nov19_CityLimits		A-1 / Agricultural and Rural Residential
	Interstate		A-2 / Agricultural
	Principal Arterial		AG / City Agricultural
	Minor Arterial		MUR / Mixed Use Residential Emphasis
	Major Collector		CBD / Central Business District
	Minor Collector		CB / Community Business
	Local		NB / Neighborhood Business
	Private		MU / Mixed Use - County
	Platted not built		MUB / Mixed Use Business Emphasis
	HR / High Density Residential		MUE / Mixed Use Employment Emphasis
	MR / Medium Density Residential		HI / Heavy Industrial
	LR / Low Density Residential		LI / Light Industrial
	NR-2 / Neighborhood Residential - Med. Density		P / Public
	NR-3 / Neighborhood Residential - High Density		AD / Airport District
	AR / Agricultural Residential		PUD / Planned Unit Development
			X / Exempt



Attachment 2: Land Use Map PUDC-25-77

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Legend

	CHEYENNE		Agricultural/Rural		Industrial
	Interstate		Rural Residential		Central Business District
	Principal Arterial		Urban Transition Residential		Community Business
	Minor Arterial		Urban Residential		Public and Quasi-Public
	Major Collector		Mixed-Use Residential		Military/Federal
	Minor Collector		Mixed-Use Commercial		Open Space and Parks
	Local		Mixed-Use Employment		
	Private				
	Platted not built				
	Ownership				

PUDC-25-77
Outside User's Agreement
Status: Active
Submitted On: 4/2/2025

Primary Location
0 CLEAR CREEK PKWY
Cheyenne, WY 82007

Owner
ICEROCK WYOMING LLC
6899 PHILLIPS INDUSTRIAL BLVD JACKSONVILLE,
FL 32256

Applicant

 AVI PC
 307-637-6017
 avi@avipc.com
 1103 Old Town Lane #101
Cheyenne, WY 82009

Application Information

This application has a deadline. The deadline is the second Wednesday of the month. Application Schedule.

Written Statement*

The Applicant is requesting the City of Cheyenne to allow the City of Cheyenne Board of Public Utilities to provide water and sewer service to the proposed warehouse development located outside of City limits for domestic use purposes. The existing site currently has water and sewer service taps extended into the lot boundary, but since the lot is and will continue to be outside of City limits a special approval is required by the City of Cheyenne in order to service the planned development.

I understand that I may not be eligible for an Outside User's Agreement if the property is close to current City limits.* 

☒

Number of connections to the BOPU system proposed* 

2

Dwelling units served* 

0

Anticipated jobs created* 

10

Review Criteria

BOPU has the capacity to serve.*
☒

The connection(s) proposed have a logical layout.*
☒

Effect of population served (employees or residents).*
☒

Serving the property will not be detrimental to the City's ability to annex in the area.*
☒

The anticipated financial impact to the City and BOPU. This is more than the direct costs or payments, and will include effects like property taxes, sales taxes, maintenance costs, etc.*
☒

The Comprehensive Plan's anticipated use patterns for the area.*
☒

Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*

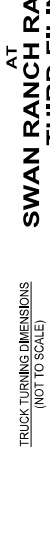
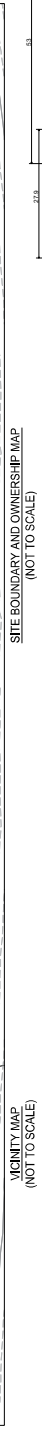
 Jacob Wilson
Apr 2, 2025

Attachments

	Posted Notice 25-77 Posted Notice.pdf Uploaded by Seth Lloyd on May 6, 2025 at 8:16 AM	
	Letter of Authorization 01_Letter of Authorization_Earthcore.pdf Uploaded by AVI PC on Apr 2, 2025 at 1:50 PM	REQUIRED
	Plot Plan / Site Plan / Plat Map 02_Site Plan_Earthcore.pdf Uploaded by AVI PC on Apr 2, 2025 at 1:50 PM	REQUIRED
	Outside User's Questionnaire 03_Outside User Questionnaire_Earthcore.pdf Uploaded by AVI PC on Apr 2, 2025 at 1:50 PM	REQUIRED
	BOPU Water and Flow Worksheet 04_Flow Justification_Earthcore.pdf Uploaded by AVI PC on Apr 2, 2025 at 1:51 PM	REQUIRED
	Proof of Ownership 05_Proof of Ownership_Earthcore.pdf Uploaded by AVI PC on Apr 2, 2025 at 1:51 PM	REQUIRED

PREPARED FOR:
RICHARDSON CONSTRUCTION INC.
101 LEEXINGTON AVENUE, SUITE 2
CHEYENNE, WY 82009

 45 YEARS ESTABLISHED • FOUNDED • SUBSTANTIAL	303 SOUTH ZEPHYRUS AVE. 101 CHEYENNE, WY 82001 800-441-2200 ANBANK@CZ.COM	
	DATE PLOTTED: APR 01, 2025	
DRAWN BY: CA / NG	NG	JW
DESIGNED BY:	CHECKED BY:	4887
JOB NO.:		SP OF DWG. NO.



LOCATED IN A PORTION OF THE SW¼ OF SECTION 27, T13N, R67W
OF THE 6TH PRINCIPAL MERIDIAN,
LARAMIE COUNTY, WYOMING
PREPARED MARCH 2025